

Arlington Town Meeting — Main Motion

ARTICLE NO. 93

Dated: April 24, 2026

I, Linda Hanson, do hereby submit the following Motion:

Voted:

That Town Meeting does and hereby resolves as follows:

WHEREAS, the Town of Arlington has pursued equity and safety for all residents through its 2025 Racial Equity Statement, 2022 Community Equity Audit and the 2017 Community Trust Act Resolution; and

WHEREAS, the trust and cooperation of all residents is necessary to the health and well-being of our community and local businesses; and to the effective operation of Arlington local government functions, and

WHEREAS, the 4th Amendment to the Constitution of the United States reads in full: “The right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures, shall not be violated, and no Warrants shall issue, but upon probable cause, supported by Oath or affirmation, and particularly describing the place to be searched, and the persons or things to be seized;” and

WHEREAS, Executive Branch law enforcement agencies, including Immigration & Customs Enforcement, have recently engaged in a pattern of unconstitutional, warrantless workplace searches, which have disrupted small businesses, courts and daily life in many communities; and

WHEREAS, the threat of unconstitutional seizure of individuals by federal authorities, such as Immigration and Customs Enforcement, is preventing immigrant households from safely engaging in public life, including pursuing education, medical care and employment; and

WHEREAS, U.S. citizens and non-citizens alike are being racially profiled and unconstitutionally targeted, harassed, and arrested by federal authorities and law enforcement officers under the guise of immigration enforcement; and

WHEREAS, workplaces in Massachusetts have joined an effort by organizations such as LUCE (Immigrant Justice Network of Massachusetts) to become 4th Amendment Workplaces that train their staff to defend the 4th Amendment rights of employers, employees and patrons; and

WHEREAS, the Town of Arlington can advocate for the rights of all residents and local businesses and discourage the overreach of Article II agencies (federal executive branch agencies) in our communities.

NOW, THEREFORE, BE IT RESOLVED, that Town Meeting supports the designation of Arlington as a 4th Amendment Workplace Community and as such, will stand against unconstitutional searches by federal agents and uphold the 4th Amendment rights of employers, employees and patrons.

BE IT FURTHER RESOLVED, that Town Meeting supports and encourages the Town Manager to continue existing efforts to inform and educate town staff around upholding residents' 4th Amendment rights; and that we support and encourage all workplaces and agencies in the Town of Arlington to join this effort to ensure respect for the US Constitution and discourage federal overreach into our community.

Comment:

Initial submission of a main motion. This is not a revision, substitute, or amendment to a previously submitted motion.

Respectfully submitted,
/s/ Linda Hanson

Precinct 9

Date Voted: _____

Action Taken: _____